

Dr. P. Swamy Goud vs The State Of Telangana on 5 February, 2026

Author: Nagesh Bheemapaka

Bench: Nagesh Bheemapaka

IN THE HIGH COURT OF JUDICATURE FOR THE STATE OF
TELANGANA

HON'BLE SRI JUSTICE NAGESH BHEEMAPAKA

WRIT PETITION No. 34113 OF 2025

05.02.2026

Between:

Dr. P. Swamy Goud

..... Petitioner

And

The State of Telangana,
Represented by its Principal Secretary,
Medical & Health & others

..... Respondents

O R D E R:

Challenging the Notice dated 29.10.2025 issued by the 3rd respondent - Telangana State Medical Council, petitioner is before this Court.

2. Petitioner is stated to be a registered medical practitioner and running Sunrise Hospital at Sangareddy with 90 beds and 12 specialties and super specialty consultants working full time. He is the Resident Medical Officer (RMO) and Managing Director of the said hospital. While so, the 3rd respondent issued notice to petitioner dated 04.07.2022 on the basis of a complaint given by the 5th respondent that his son Master Rohit while riding a bicycle fell down and sustained a swelling near left elbow; he was taken to petitioner's hospital for treatment where an x-ray was taken and noticed that there was a hair line fracture and the boy was treated with POP slab and further advised to follow up after five days for re-manipulation and immobilization. On his reference to other hospitals, the 5th respondent was informed that his son was not properly treated at petitioner's hospital. To the said notice, petitioner submitted explanation. Petitioner states that the 5th respondent lodged a complaint in this regard with the District Medical & Health Officer, Sangareddy, who, after obtaining expert opinion, opined that the treatment given to the boy is correct. 2.1. It is stated that thereafter, Respondent No.3 slept over the matter for more than nine months and issued second notice dated 11.04.2023 and directed petitioner to appear before the Ethics Committee on 26.04.2023. Subsequently, petitioner was given notices by the 3rd respondent

on 15.05.2023, 27.06.2023 and 28.10.2023 and he answered the same. But the complainant never appeared before the Committee to address his grievance. While things stood thus, surprisingly, Respondent No.3 again issued notice on 08.04.2024. The 5th respondent lodged a complaint before the District Consumer Disputes Redressal Commission, Medak at Sangareddy and the same was numbered as Consumer Case No. 37 of 2024. Eventually, the Commission, taking into consideration the expert opinion obtained by the DM&HO, by order dated 07.08.2024 closed the case. In this Writ Petition, petitioner challenged the Notice dated 29.10.2025 issued by the 3rd respondent under Rule-6 of India Medical Council (Professional Conduct, Etiquette and Ethics) Regulations, 2002 (the 2002 Regulations) alleging violation of Provisions 1.4.2 and 7.20 of the 2002 Regulations, on several grounds such as (i) the complaint of the 5th respondent is not concerned with the allegations made in this notice; (ii) no complaint pertaining to the allegations of this notice is lodged with the 3rd respondent;

(iii) the 3rd respondent violated the procedure for conduction of enquiries; (iv) the 3rd respondent violated Principles of Natural Justice, and so on. Hence, the Writ Petition.

3. This Court by order dated 11.11.2025, granted interim stay of the impugned order dated 29.10.2025.

4. The 3rd respondent filed counter stating that Writ Petition is premature as Petitioner challenged the notice and has also not availed remedy under Regulation 8.7 of the IMC Regulations. It is stated, the earlier notices starting from 04.07.2022, 12.11.2024 and personal hearings thereto was pursuant to the Preliminary procedure contemplated under Rules 1 to 3 as per the Rules Regulating the Procedure at an Enquiry held under Sections 15 and 17 of the Andhra Pradesh Medical Practitioners Registrations Act, 1968. As per the aforesaid Rules, after Preliminary procedure contemplated under Rules 1 to 3 has been completed, under Rule 4 (2) 'If the Council considers that the case is one in which an enquiry under Sections 15 and 17 of the Act ought to be held, the Chairman shall direct the Registrar to take steps for institution of any enquiry and for having the case heard and determined by the Council' steps for institution of enquiry have been initiated against Petitioner.

4.1. It is submitted that, in the present case, after Preliminary procedure contemplated under Rules 1 to 3 has been completed, a notice under Rule 6 dated 29.10.2025 was issued to Petitioner, making the following charge against him:

" You as the attending doctor in treating patient Master Rohith, age 7 yrs, S/o. Sri. V. Shadrak, in Sunrise Hospital, Sangareddy as a Managing Director and RMO of the said hospital have been found to have violated the provisions 1.4.2 and 7.20 of the Indian Medical Council, Professional conduct, etiquette and Ethics Regulations 2002, and that you have thereby been alleged to be guilty of infamous conduct in a professional respect,"

4.2. It is stated that impugned notice has been issued under Rule 6 of the 'Rules Regulating the Procedure at an Enquiry held under Sections 15 & 17 of the Andhra Pradesh Medical Practitioners Registration Act, 1968' which reads as hereunder:

" 6. When the charge is brought by a complainant, they shall require the complaint to be reduced to writing and verified by oath or solemn affirmation of the complainant. The articles of charge and a list of documents and witnesses by which each charge is to be sustained shall then be prepared and the Registrar shall then issue a notice, in writing on behalf of the Counsel, addressed to the Medical Practitioner concerned. Such notice shall be accompanied by a copy of the articles of charge and the list of witnesses and documents referred to above and shall inform the Medical Practitioner concerned the day on which and the hour at which the Council or Committee intended to deal with the case and call upon him to attend, in person, or by council before the council or committee on that day and hour. The notice shall be in the form appended to these rules, with such variations as may require. It shall be served on the medical practitioner 15 clear days before the beginning of the enquiry, and shall be accompanied by a copy of provisions contained in Sections 15,17 and 26 of the Act and the rules regulating the procedure for conducting an enquiry. Service of the notice may be made either by delivery to the Medical Practitioner in person or registration acknowledgment due letter addressed to his usual residence."

From the above, it is evident that the impugned notice under challenge is the initial notice of a detailed Enquiry procedure contemplated under the Act and Rules. It is stated, Consumer Case No. 37 of 2024 was purportedly dismissed by the consumer forum; the issue before the District Consumer Disputes Redressal Commission, Medak is that of medical negligence, whereas, the charge against petitioner is that without possessing specialty i.e., a medical post graduate degree in orthopedics, he is found to be advertising, practicing as an Orthopaedician which is in gross violation of regulation No. 7.2 of the IMC Regulations. Chapter 8, Regulation 8 Punishment and Disciplinary Action in Indian Medical Council, Professional conduct, Etiquette and Ethics - Regulations, 2002 Regulations 8.1 is extracted hereunder:

' 8. It must be understood that the instances of offenses and of Professional misconduct which are given above do not constitute and are not intended to constitute a complete list of the infamous acts which calls for disciplinary action, and that by issuing this notice the Medical Council of India or State Medical Councils are in no way precluded from considering and dealing with any other form of professional misconduct on the part of registered practitioner. Circumstances may and do arise from time to time in relation to which there may occur questions of professional misconduct which do not come within any of these categories. Every care should be taken that the code is not violated in letter or spirit. In such instances as in all others, the Medical Council of India and/or State Medical Councils have to consider and decide upon the facts brought before the the Medical Council of India and/or State Medical Councils.

From the above, it is abundantly clear that the complaint of the 5th respondent alone does not form the basis of action proposed by the 2nd Respondent. The 3rd Respondent is not precluded from considering and dealing with any other form of professional misconduct on the part of registered practitioner.

4.3. As per Rule 8.4 of the Indian Medical Council, Professional conduct, etiquette and Ethics Regulations 2002 (herein referred to as IMC Regulations), the decision on the complaint against the delinquent physician can be taken within 6 months, however, in this case, delay occurred which is neither willful nor wonton but has occurred due to the circumstances enumerated in the counter.

4.4. It is stated petitioner has not availed remedy under Regulation 8.7 of the IMC Regulations and has prematurely approached this Court. Petitioner has not made any specific averment as to how the impugned notice is purportedly in violation of Rule 6. It is submitted that the impugned notice has been issued strictly in terms of Rule 6 and there is no purported violation as alleged or at all. Petitioner has not made any specific averment as to how the impugned notice is purportedly in violation of Rule 6; impugned notice was issued strictly in terms of Rule 6 and there is no purported violation as alleged or at all. It is therefore, prayed that this Writ Petition be dismissed.

5. Petitioner filed reply stating that counter proceeds on an erroneous premise that the impugned notice dated 29.10.2025 is a mere preliminary or innocuous notice. On the contrary, the impugned notice has been issued expressly under Rule 6 of the Rules Regulating the Procedure at an Enquiry held under Sections 15 and 17 of the Telangana Medical Practitioners Registration Act, 1968, thereby initiating a formal disciplinary enquiry with serious civil and professional consequences. It is stated, when a statutory authority initiates proceedings in violation of mandatory procedure, limitation prescribed under law, and principles of natural justice, the aggrieved person is not required to await culmination of such illegal proceedings and is entitled to invoke the extraordinary jurisdiction of this Court under Article 226 of the Constitution.

It is well-settled that availability of an alternative remedy does not bar judicial review when the impugned action is without jurisdiction, barred by limitation, or suffers from violation of statutory provisions. The impugned notice squarely falls within all the aforesaid categories.

5.1. Rule 6 of the Rules Regulating the Procedure at an Enquiry held under Sections 15 and 17 of the Act mandates the following:

- (a) the complaint must be reduced to writing and verified;
- (b) articles of charge must be prepared;
- (c) a list of documents and witnesses must be prepared;
- (d) the notice issued to the medical practitioner must be accompanied by copies of the articles of charge, list of witnesses and documents;

(e) the notice must also be accompanied by copies of Sections 15, 17 and 26 of the Act and the Rules regulating the enquiry.

The provision of Rule 6 is extracted hereunder:

" 6. When the charge is brought by a complainant, they shall require the complaint to be reduced to writing and verified by oath or solemn affirmation of the complainant. The articles of charge and a list of documents and witnesses by which each charge is to be sustained shall then be prepared and the Registrar shall then issue a notice, in writing on behalf of the Council, addressed to the Medical Practitioner concerned. Such notice shall be accompanied by a copy of the articles of charge and the list of witnesses and documents referred to above and shall inform the Medical Practitioner concerned the day on which and the hour at which the Council or Committee intends to deal with the case and call upon him to attend, in person or by counsel. The notice shall be served 15 clear days before the beginning of the enquiry, and shall be accompanied by copies of Sections 15, 17 and 26 of the Act and the Rules regulating the enquiry."

The aforesaid requirements are not procedural formalities but substantive safeguards intended to ensure a fair and meaningful opportunity of defence. Without knowledge of specific charges, documents relied upon and witnesses proposed, a medical practitioner cannot defend himself effectively. In the present case, admittedly, none of the aforesaid mandatory requirements were complied with. The impugned notice merely calls upon petitioner to appear, without furnishing articles of charge, list of documents or witnesses. Therefore, the impugned notice is void ab initio and unenforceable in law. 5.2. It is stated, the charge now sought to be framed under Regulations 1.4.2 and 7.20 of the Indian Medical Council (Professional Conduct, Etiquette and Ethics) Regulations, 2002 is wholly alien to the original complaint. It is stated that in the complaint of Respondent No.5, it is never alleged that petitioner displayed unrecognized qualifications or falsely claimed to be a specialist. The entire grievance of Respondent No.5 pertained only to alleged medical negligence in treatment of his son. Introduction of allegations under Regulations 1.4.2 and 7.20 at this belated stage, after years of proceedings, is legally impermissible and amounts to fishing and roving enquiry. Disciplinary proceedings must be founded on specific allegations arising from the complaint or materials legitimately discovered during preliminary enquiry, neither of which exists in the present case.

5.3. It is further stated, Respondent No.3 cannot trivialize the impugned notice as a mere "initial notice". A notice under Rule 6 initiates a formal enquiry which may culminate in removal of name from the medical register, suspension, or other punitive action, directly affecting the petitioner's fundamental right to practice his profession under Article 19(1)(g) of the Constitution of India. The attempt of Respondent No.3 to artificially distinguish the proceedings before the Consumer Forum from the present disciplinary action is wholly untenable and deliberately misleading. Though the fora may be different, the factual foundation, cause of action and allegations are identical, all originating from the same complaint lodged by Respondent No.5 in relation to the alleged treatment of his minor son. The District Consumer Disputes Redressal Commission, Medak, after a full-fledged adjudication, appreciation of oral and documentary evidence, and consideration of expert medical opinion, dismissed the complaint, thereby recording a categorical finding that there

was no negligence or wrongdoing in the treatment rendered by the petitioner. Notably, even in the said consumer proceedings, no allegation whatsoever was raised that the petitioner falsely claimed to be a specialist or lacked requisite qualifications. In the absence of any such foundational allegation in the original complaint or in any prior proceedings, Respondent No.3 is wholly without jurisdiction to invoke Regulation 7.20 of the Indian Medical Council (Professional Conduct, Etiquette and Ethics) Regulations, 2002 at this belated stage. Continuation of disciplinary proceedings on the very same factual substratum, coupled with the introduction of an entirely new and unrelated charge after years of proceedings, is ex facie arbitrary, oppressive, vitiated by mala fide exercise of power, and amounts to nothing short of harassment and abuse of the disciplinary process.

6. Heard Mr. T. Srujan Kumar Reddy, learned counsel for the petitioner and Mr. Sandeep Reddy Sama, learned counsel for the 3rd Respondent and the learned Government Pleader for Medical & Health.

7. Before analyzing the merits and de-merits of the case, it is relevant to extract the following Regulations. India Medical Council (Professional Conduct, Etiquette and Ethics) Regulations, 2002
CHAPTER I

1. CODE OF MEDICAL ETHICS 1.4 Display of registration numbers:

1.4.1. Every physician shall display the registration number accorded to him by the State Medical Council / Medical Council of India in his clinic and in all his prescriptions, certificates, money receipts given to his patients. 1.4.2. Physicians shall display as suffix to their names only recognized medical degrees or such certificates/diplomas and memberships/honours which confer professional knowledge or recognizes any exemplary qualification/achievements.

CHAPTER 6

6. UNETHICAL ACTS: A physician shall not aid or abet or commit any of the following acts which shall be construed as unethical -

6.1 Advertising:

CHAPTER 7

7.20 A Physician shall not claim to be specialist unless he has a special qualification in that branch.

CHAPTER 8

8. PUNISHMENT AND DISCIPLINARY ACTION 8.1. It must be clearly understood that the instances of offences and of Professional misconduct which are given above do not constitute and are not intended to constitute a complete list of the infamous acts which calls for disciplinary action,

and that by issuing this notice the Medical Council of India and or State Medical Councils are in no way precluded from considering and dealing with any other form of professional misconduct on the part of a registered practitioner. Circumstances may and do arise from time to time in relation to which there may occur questions of professional misconduct which do not come within any of these categories. Every care should be taken that the code is not violated in letter or spirit. In such instances as in all others, the Medical Council of India and/or State Medical Councils have to consider and decide upon the facts brought before the Medical Council of India and/or State Medical Councils.

8.7 Where either on a request or otherwise the Medical Council of India is informed that any complaint against a delinquent physician has not been decided by a State Medical Council within a period of six months from the date of receipt of complaint by it and further the MCI has reason to believe that there is no justified reason for not deciding the complaint within the said prescribed period, the Medical Council of India may-

(i) Impress upon the concerned State Medical council to conclude and decide the complaint within a time bound schedule;

(ii) May decide to withdraw the said complaint pending with the concerned State Medical Council straightaway or after the expiry of the period which had been stipulated by the MCI in accordance with para(i) above, to itself and refer the same to the Ethical Committee of the Council for its expeditious disposal in a period of not more than six months from the receipt of the complaint in the office of the Medical Council of India." 8.8. Any person aggrieved by the decision of the State Medical Council on any complaint against a delinquent physician, shall have the right to file an appeal to the MCI within a period of 60 days from the date of receipt of the order passed by the said Medical Council:

Provided that the MCI may, if it is satisfied that the appellant was prevented by sufficient cause from presenting the appeal within the aforesaid period of 60 days, allow it to be presented within a further period of 60 days.

8. A perusal of the impugned notice dated 29.10.2025 issued by the 3rd Respondent shows that the said notice was issued under Regulation-9 of the 2002 Regulations, alleging that petitioner violated provisions of Regulations 1.4.2 and 7.20 of the 2002 Regulations. The 5th respondent lodged complaint with the DM&HO alleging that petitioner has not given proper treatment to his son. On the same allegation, he filed a case before the District Consumer Disputes Redressal Commission, Medak at Sangareddy. The DM&HO, after obtaining expert opinion, held that petitioner has given right and proper treatment. The District Consumer Disputes Redressal Commission, Medak at Sangareddy, by detailed order dated 07.08.2024 dismissed the complaint, observing:

" After going through the rival contentions and arguments it appears to us that as parents of the 7 year old boy the Complainant No.1 and her husband did everything

that they could by filing multiple complaints against the opposite parties, however as per the averments and records it is clear that the Opposite party No.2 has not performed any surgery to the Complainant No.2 and he personally deposed before this commission that surgery was not required as he was a child and it automatically adjusts and fixes itself as he grows unlike an adult who requires surgery for such issues.

After going through the record and averments of the complainants, we can see the pain and love of the parents towards the Complainant No.2; however the same has been exhibited wrongly that is instead of getting better treatment as suggested i.e., the physiotherapy, the Complainant No.1 and her husband took and expedition of filing multiple complaints against the Opposite parties. It is not the Opposite parties who were the cause for the fracture nor they did any wrong surgery or ill-treatment or exhibited any negligence when complainant No.2 taken to them. It appears that visiting multiple doctors by the Complainant No.1 and her husband, they wrongly construed that the Opposite Parties have not properly treated their son i.e., Complainant No.2.

As per the averments of the Opposite parties and records it is also established that the Complainants have not followed with the treatment prescribed by the Opposite Parties properly and nor visited with the follow-up checkups. As alleged it appears that the complainants focused more on filing complaints against Opposite parties rather than getting the proper treatment for Complainant No.2."

9. Both the forums found petitioner not guilty and closed the complaint of the 5th respondent. The District Consumer Disputes Redressal Commission observed that ' as per the averments of the opposite parties and records, it is also established that the complainants have not followed with the treatment prescribed by the opposite parties properly and nor visited with the follow up checkups. As alleged, it appears that the complainants focused more on filing complaints against opposite parties rather than getting the proper treatment for complainant No.2. However, the impugned notice is for the offences under Regulations 1.4.2 and 7.20 of the 2002 Regulations. Therefore, the orders of the DM&HO and District Consumer Disputes Redressal Commission, Medak at Sangareddy, on the complaint of the 5th respondent will have no bearing on the impugned notice. Right to appeal available to petitioner under Regulation 8.8 of the 2002 Regulations, as contended by the 3rd respondent, will come into play only after the Medical Council rendered a decision. Since it is only at the notice stage calling for explanation, Regulation 8.8 is not attracted. The contention of the 3rd respondent in this regard is meritless.

10. Be that as it may, notice under challenge is only a notice simplicitor calling for explanation of petitioner regarding the alleged offences/violations of Regulations 1.4.2 and 7.20 of the 2002 Regulations. Even in the writ affidavit also, petitioner has not disclosed what are his qualifications in medicine and what degrees he is having in a particular (Orthopedics) specialty. Hence, it is appropriate and proper if petitioner gives his explanation detailing all the grounds that are raised in this Writ Petition.

11. In the result, the Writ Petition is disposed of directing petitioner to submit his explanation to the impugned notice dated 29.10.2025 within two weeks from the date of receipt of a copy of this order. On receipt of such explanation, the Telangana State Medical Council shall consider the same on merits, uninfluenced by the observations of this Court in this order and pass speaking orders within six weeks thereafter.

12. Consequently, the miscellaneous Applications, if any shall stand closed.

NAGESH BHEEMAPAKA, J 05th February 2026 ksld